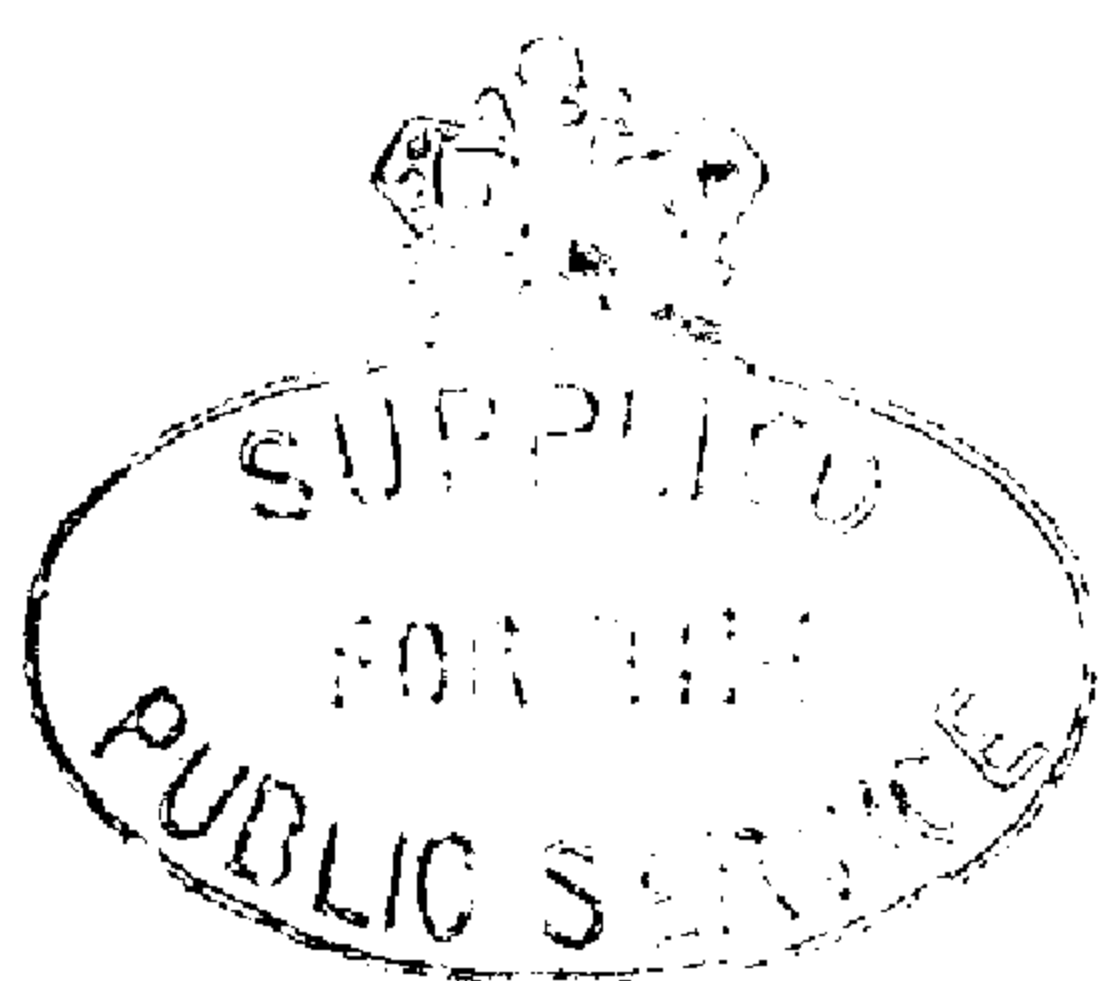




CHAPTER cx.

An Act to make provision for the acquisition of a Site A.D. 1912.
for Public Offices in Westminster for the acquisition
of land for the further extension of the Patent Office
and for purposes in connection with the Record Office
to amend the Public Offices Sites (Extension) Act 1908
and to make provision for certain other public purposes.
[7th August 1912.]

WHEREAS it is expedient to provide a site for new buildings
for the Board of Trade and such other public offices as
may be determined to provide for the further extension of the
Patent Office and to provide for the acquisition of land for
use in connection with the Record Office :

And whereas for those purposes it is expedient that the Com-
missioners of Works (in this Act called the Commissioners) should
be empowered to acquire certain lands and buildings situated
in the parish of St. Margaret and St. John the Evangelist
Westminster in the county of London certain lands and
buildings situated in the parish of St. Andrew Holborn-above-
the-Bars and St. George the Martyr Holborn in the county of
London and certain lands and buildings situated in the parish
of the city of London in the city of London and to erect buildings
on any lands so acquired :

And whereas it is expedient that the Public Offices Sites 8 Edw. 7.
(Extension) Act 1908 (in this Act referred to as the Act of 1908) c. cxii.
should be amended by extending the time within which the Com-
missioners may exercise their powers for the compulsory purchase
of certain lands authorised to be acquired by them under that Act :

And whereas it is expedient that the Commissioners should
be authorised to stop up and discontinue as a public thorough-
fare part of Took's Court situated in the parish of the city of
London aforesaid and in the parish of St. Andrew Holborn-

A.D. 1912. above-the-Bars and St. George the Martyr aforesaid subject always to the provisions of this Act but as respects so much of that part of Took's Court as lies within the limits as shown on the deposited plans referred to in the Act of 1908 of the land authorised to be acquired under that Act without complying with the provisions of that Act :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas duplicate plans (in this Act referred to as the deposited plans) describing the situation of the lands proposed to be acquired under this Act with the houses and buildings thereon with a book of reference thereto (in this Act referred to as the deposited book of reference) containing the names of the owners and lessees or reputed owners and lessees and of the occupiers thereof have been deposited with the clerk of the peace for the county of London and the clerk of the peace for the county of the city of London :

And whereas certain of the lands proposed to be acquired under this Act are vested in His Majesty as part of the hereditary land revenues of the Crown subject to certain outstanding leases estates and interests :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Vesting of
and power
to purchase
land.

1. All the estate and interest of His Majesty in any of the lands so vested in His Majesty as aforesaid delineated on the deposited plans and described in the deposited book of reference shall on the date of vesting as hereinafter defined vest in the Commissioners subject to any outstanding leases estates or interests therein and the Commissioners may at any time after the passing of this Act purchase and acquire for the purposes of this Act all or any of those outstanding leases estates and interests and may also purchase and acquire for the purposes of this Act all or any of the other lands delineated on the deposited plans and described in the deposited book of reference.

Incorporation of Lands
Clauses
Acts.

2.—(1) For the purpose of the purchase and acquisition of land under this Act the Lands Clauses Acts shall subject to the provisions of this Act be incorporated with this Act with the following exceptions and modifications :—

(a) The provisions relating to the sale of superfluous land and access to the special Act and section one hundred

and thirty-three of the Lands Clauses Consolidation Act 1845 (relating to land tax and poor rate) shall not be incorporated with this Act:

A.D. 1912.

8 & 9 Vict.
c. 18.

- (b) In the construction of the Acts incorporated with this Act the Commissioners shall be deemed to be the promoters of the undertaking and this Act shall be deemed to be the special Act:
- (c) The bond required by section eighty-five of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Commissioners and shall be sufficient without the addition of the sureties mentioned in that section:
- (d) All claims for compensation made upon the Commissioners under this Act or any Act incorporated with this Act shall if the person claiming has no greater interest in the land in respect of which compensation is claimed than as tenant from year to year or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made be determined in manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act 1845:
- (e) There may be contained in the verdict of a jury or the award of arbitrators or of an umpire a finding that the claimant after having been requested in writing by the Commissioners so to do has failed to deliver to the Commissioners a statement in writing of the amount claimed giving sufficient particulars and in sufficient time to enable the Commissioners to make a proper offer and where such a finding is contained in a verdict or award the provisions of the Lands Clauses Acts as to costs of inquiries and arbitrations shall apply as if the Commissioners had offered the same sum or a greater sum than that found due by the verdict or award:

Provided that this provision shall not apply unless the written request for particulars contains a notice of the effect of this provision.

(2) The powers of the Commissioners for the compulsory purchase of land under this Act shall cease after the expiration of five years from the passing of this Act.

A.D. 1912.

Consideration to be paid for Crown lands.

3.—(1) The consideration payable to His Majesty for his estate and interest in the lands vested in the Commissioners by virtue of this Act (in this section referred to as the consideration) shall be such amount as may be agreed upon between the Treasury and the Commissioners of Woods or in default of agreement between them such amount as may be fixed by a surveyor appointed for the purpose by the Treasury.

The amount of the consideration shall be ascertained as soon as may be after the passing of this Act and in ascertaining that amount regard shall be had to the matters to which regard is to be had in estimating any purchase money under section sixty-three of the Lands Clauses Consolidation Act 1845.

8 & 9 Vict.
c. 18.

(2) The amount of the consideration payable to His Majesty in respect of his estate and interest in that part of the said lands which lies to the south of the premises known as No. 7 Whitehall Gardens and now occupied as offices for the Board of Trade (in this Act referred to as the southern lands) and the amount of the consideration payable in respect of his estate and interest in the residue of the said lands (in this Act referred to as the northern lands) shall be ascertained separately.

(3) The consideration shall be deemed to become due on the date of vesting and shall as from that date carry interest at the rate of three and a half per cent. per annum and shall be paid to the Commissioners of Woods by means of sixty equal half-yearly instalments of principal and interest combined and the first of the said instalments shall be payable on the expiration of six months from the date of vesting.

(4) So much of every half-yearly instalment as represents principal shall be carried to the account of the capital of the land revenues of the Crown and applied accordingly and so much of every half-yearly instalment as represents interest shall be treated as annual income of the land revenues of the Crown and applied accordingly.

(5) If the moneys provided by Parliament for the service of the Commissioners are insufficient for the payment of the instalments payable by the Commissioners under this section the amount by which the said moneys are so insufficient shall be charged on and paid out of the Consolidated Fund or the growing produce thereof.

33 & 34 Vict.
c. 35.

(6) The Apportionment Act 1870 shall apply in the case of any rents payable in respect of the land vested in the Commissioners by virtue of this Act and those rents if accruing due

before the date of vesting shall be payable to the Commissioners of Woods and if accruing due after that date shall be payable to the Commissioners. A.D. 1912.

(7) The Commissioners shall pay all costs and expenses incurred by His Majesty or by the Commissioners of Woods in relation to the valuation of the said land or the vesting thereof under this Act.

(8) For the purposes of this Act the expression "the date of vesting" means such date as may be agreed upon between the Commissioners of Woods and the Commissioners or in default of agreement fixed by the Treasury as the date on which the Commissioners are to take possession of the said lands for the purposes of this Act and different dates may be fixed as regards the southern lands and as regards the northern lands.

4. The time limited for the exercise by the Commissioners of their powers for the compulsory purchase of land under the Public Offices Sites (Extension) Act 1908 is hereby extended so far as relates to the pieces of land forming part of Took's Court situate respectively in the parish of the city of London and in the parish of St. Andrew Holborn-above-the-Bars and St. George the Martyr aforesaid and numbered respectively 13 and 15 on the said deposited plans till the date of the expiration of five years from the passing of this Act. Extension of time for compulsory acquisition of land under 8 Edw. 7. c. cxii.

5.—(1) If and so soon as the Commissioners provide means of access to Took's Court by means of a footway of not less width in any place than fifteen feet and constructed in the position marked "substituted footpath" on the deposited plans they may notwithstanding anything in the Act of 1908 stop up and discontinue as a public thoroughfare that part of Took's Court which lies within the limits as shown on the deposited plans of the land to be acquired under this Act and within the limits as shown on the deposited plans referred to in the Act of 1908 of the land to be acquired under that Act. Power to stop up and alter thoroughfares.

(2) In the event of the Commissioners providing such substituted footpath as aforesaid they shall at their own cost properly pave the footpath and provide sufficient and proper lamps therefor and the Commissioners shall also at their own cost properly carry out all such works in connection with the sewer under Took's Court as may be necessary by reason of the stopping up of the part aforesaid of Took's Court and if any question arises between the Commissioners and the Council of the Metropolitan Borough of

A.D. 1912. — Holborn or between the Commissioners and the Common Council of the City of London as to whether the footpath has been properly paved as to whether sufficient and proper lamps have been provided by the Commissioners or as to whether any works in connection with the said sewer are necessary or as to whether any necessary works have been properly carried out by the Commissioners the question shall be referred to a single arbitrator to be appointed by the Board of Trade and his decision shall be final.

52 & 53 Vict.
c. 49. Subject as hereinbefore provided the Arbitration Act 1889 shall apply to any arbitration under this provision.

(3) The Commissioners may within the limits as shown on the deposited plans divert and alter the highway known as Whitehall Gardens.

Land tax. 6.—(1) Any land tax assessed on the first day of January nineteen hundred and twelve on any part of the land delineated on the deposited plans which is vested in or acquired by the Commissioners by virtue of or under this Act shall as from the specified date be deemed to have been redeemed at the rate of payment authorised and in accordance with the other conditions prescribed by the Finance Act 1896 and the Land Tax Acts as defined in that Act and after the specified date no sum shall be assessed or charged in respect of land tax on any part of the land so vested or acquired.

59 & 60 Vict.
c. 28

For the purpose of the foregoing provision the expression “the specified date” means—

As respects land vested in the Commissioners by virtue of this Act and not being a public thoroughfare the date of vesting;

As respects land acquired by the Commissioners under this Act and not being a public thoroughfare the date of acquisition;

As respects land vested in or acquired by the Commissioners by virtue of or under this Act and being a public thoroughfare the date on which the thoroughfare is stopped up.

(2) The Commissioners of Inland Revenue shall grant in respect of the lands to which this section applies a certificate of exoneration from assessment to land tax and that certificate shall be registered by the officer appointed for the registry of contracts for the redemption of land tax.

7. All rights of way rights of laying down or of continuing any pipes sewers or drains on through or under any of the land vested in or acquired by the Commissioners by virtue of or under this Act and all other rights and easements in or relating to that land shall on the land becoming so vested or being so acquired be extinguished and all the soil of those ways and the property in the pipes sewers and drains shall vest in the Commissioners:

A.D. 1912.

Extinction
of rights of
way and
other ease-
ments.

Provided that any persons may recover from the Commissioners the compensation (if any) to which they may be entitled under any of the provisions of the Lands Clauses Acts for any rights or property of which they may be deprived in pursuance of this section and the amount of that compensation shall be determined in manner provided by the Lands Clauses Acts as modified for the purpose of their incorporation with this Act.

8.—(1) Subject as expressly provided in this section nothing in this Act shall affect any rights of the London County Council in relation to any sewers of the Council in or under any lands vested in or acquired by the Commissioners by virtue of or in pursuance of this Act.

For pro-
tection of
London
County
Council.

(2) The Council shall on being required to do so by the Commissioners construct a new sewer in substitution for a portion of the existing Victoria Street sewer of the Council as shown upon the plan marked "A" signed in triplicate by William Wedgwood Benn the chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons and the Council shall proceed with all reasonable despatch to construct the said new sewer with all necessary incidental works and appliances in accordance with such plans specifications and particulars as may be agreed between the Council and the Commissioners.

(3) When and so soon as the said new sewer is completed with all necessary incidental works and appliances and connected with the said existing sewer of the Council the said new sewer and incidental works and appliances shall be and remain vested in the Council and be as fully and completely under the jurisdiction and control of the Council as other sewers of the Council and the portion of the said existing sewer rendered unnecessary

A.D. 1912. by reason of the completion of the said new sewer may be removed and dealt with by the Commissioners as they think fit.

(4) The proper costs and expenses of the Council in the construction of the said new sewer and the provision of any necessary incidental works and appliances shall be repaid by the Commissioners to the Council on the completion thereof.

For protection of Metropolitan Water Board.

9. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall have effect (that is to say):—

The Commissioners shall if called on so to do by the Board bear the reasonable cost of—

(a) laying a cast-iron main having an internal diameter of five inches from the existing five-inch main at the south end of Whitehall Gardens to the existing four-inch main at or near the north-east corner of the banqueting hall; and

(b) connecting the new main with the said existing mains.

As to purchase of leasehold interest of National Club.

10. The Commissioners shall within six months from the passing of this Act serve on the secretary for the time being of the National Club a notice to treat for the purchase of the leasehold interest of such club in the property No. 1 Whitehall Gardens shown on the deposited plans and described in the deposited book of reference as No. 6 in the parish of Saint Margaret and Saint John the Evangelist Westminster.

As to purchase of freehold of certain property in Clifford's Inn.

11. The Commissioners shall within three months from the passing of this Act serve on William Willett the younger a notice to treat for the purchase of the freehold interest in the properties (being portions of Clifford's Inn) shown on the deposited plans and described in the deposited book of reference as Nos. 1 to 4 (inclusive) in the parish of the city of London city and county of the city of London.

Power to enter on lands.

12. The Commissioners and their surveyors officers and workmen may at all reasonable time in the daytime on giving twenty-four hours' notice in writing enter on any of the land which is vested in or authorised to be acquired by the Commissioners by virtue of or under this Act for the purpose of surveying or valuing the land.

13. The Commissioners may erect all such buildings execute all such works and do all such other things as may in their opinion be necessary or proper for the purpose of providing new buildings for public offices on the land vested in or acquired by them under this Act or of adapting the land for use in connexion with public offices and appropriating any such land for the purpose.

A.D. 1912.
Power of
Commis-
sioners to
build.

14. The Commissioners shall not as regards lands in the parish of Saint Margaret and Saint John the Evangelist Westminster erect any buildings east of a line coloured red and shown on a plan marked "B" signed in triplicate by William Wedgwood Benn the chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons.

As to build-
ing line in
city of West-
minster.

15.—(1) Where in stopping up any rights of way or in the removal or pulling down of any buildings or in raising or lowering the ground of any street or way for the purposes of this Act it is necessary to remove or to raise or sink or otherwise alter relatively to the surface of the ground the position of any pipe wire or other apparatus laid down or used by any gas water hydraulic power or electricity company or connected with any house or building for the supply of gas water hydraulic power or electricity the following provisions shall have effect:—

Protection
of works of
gas water
hydraulic
power and
electricity
companies.

(a) The Commissioners shall forthwith give notice thereof to the company:

(b) The company shall forthwith after the receipt of that notice execute any necessary work at the expense of and to the reasonable satisfaction of the Commissioners and in case of any difference as to the necessity for the work or the amount of the expense to be paid by the Commissioners or otherwise the matter in dispute shall be settled by an engineer to be chosen by the President of the Institution of Civil Engineers:

(c) If the company decline or within fourteen days after the expiration of the notice or (in the event of any such difference as aforesaid as to the necessity for the work having arisen) after the making of the award of the arbitrator as the case may be neglect to proceed with

A.D. 1912.

the execution of the work the Commissioners may themselves execute the work :

(d) Any pipes wires or other apparatus which may be removed in pursuance of these provisions either by the company or the Commissioners shall remain the property of the company :

(e) The Commissioners shall make compensation to the company for all loss or damage which may be occasioned by the execution of any of the works authorised under this Act.

(2) For the purposes of this section the expression "gas water hydraulic power or electricity company" includes any person or body of persons supplying gas water hydraulic power or electricity.

Provisions as to expenses &c. of Commissioners.

16.—(1) All expenses incurred by the Commissioners under this Act shall so far as provision is not otherwise made for them be defrayed out of moneys provided by Parliament.

15 & 16 Vict. c. 28.

(2) The provisions of the Commissioners of Works Act 1852 and any Act amending that Act shall apply in the case of land vested in or acquired by the Commissioners by virtue of or under this Act in like manner as they apply in the case of land vested in or purchased by the Commissioners under that Act :

Provided that the Commissioners shall not without the consent of the Commissioners of Woods sell or exchange any estate or interest which is vested in them by virtue of this Act and which was at the time of the passing of this Act vested in His Majesty as part of the hereditary land revenues of the Crown.

(3) Any notice summons writ or other document required to be given issued or signed by or on behalf of the Commissioners may be given issued or signed by the secretary or assistant secretary of the Commissioners and need not be under their common seal.

Correction of errors &c. in deposited plans and book of reference.

17.—(1) If any omission misstatement or erroneous description is found to have been made in respect of any of the lands or of any of the owners lessees or occupiers of any of the lands delineated on the deposited plans or described in the deposited book of reference the Commissioners after giving ten days' notice to the owners lessees and occupiers of the lands affected by the proposed correction may apply for the correction thereof to two justices acting in the case of lands situate in the county of

London for the county of London and in the case of lands situate in the city of London for the city of London and if it appears to the justices that the omission misstatement or erroneous description arose from mistake they shall grant a certificate accordingly. A.D. 1912.

(2) The justices shall state in their certificate the particulars of any omission and in what respects any matter is misstated or erroneously described.

(3) A certificate granted under this section shall be deposited in the same manner as if it had originally formed part of the deposited plans or deposited book of reference (as the case may be) and shall be kept therewith and shall be deemed to be part thereof and upon the deposit of the certificate the deposited plans or the deposited book of reference (as the case requires) shall for the purpose of the powers by this Act conferred on the Commissioners be deemed to be corrected according to the certificate.

18. If any person wilfully obstructs any person acting under the authority of the Commissioners in the lawful exercise of the powers vested in them under this Act he shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds. Penalty for obstructing Commissioners.

19. This Act may be cited as the Public Offices (Sites) Act 1912. Short title.

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